

Civil Procedure—Practice Problem #1

Due September 17, 2026, by 9:00pm

Instructions: This problem consists of three short-answer or essay questions, all based on the following fact pattern. Please answer all questions in a single separate document, numbering your answers (A), (B), and (C). Please title your document Lastname_Firstname_Problem1 and submit via Canvas.

This practice exercise is graded *for completion only*. It is also one of the first times you will be writing long-form legal analysis, so the goal is to begin the process of learning how to write such essay answers. I do not suggest writing more than ~1,000 words as an upper bound, nor do I suggest spending more than a few hours on the prompt. You may use your notes and casebook, since this is the first long-form writing you are doing for this class, but I would suggest at least thinking through and/or drafting each answer *without* any notes or casebook first, to begin the process of practicing closed-book/closed-note answer writing, which will be valuable for all of your final exams this semester.

The following facts are the background for all three questions:

Pat and Dot live in the State of O’Quinn. In 2013, they went into business together as farmers. Pat owns the farmland, and Dot, who has an especially green thumb, does the farming. They signed the following agreement: “Pat shall provide the land. Dot shall provide the farming labor. All sales of produce grown at the farm must be jointly approved in advance by Pat and Dot. The proceeds of any sale shall be evenly distributed between Pat and Dot.”

Unfortunately, Pat and Dot eventually had a falling out. By the time the harvest arrived in 2024, Dot had had enough. So, without telling Pat first, Dot sold the whole harvest from the farm to a neighbor for below-market value: \$100,000 when it likely would have sold for \$150,000 on the open market. Dot gave Pat half of the proceeds—\$50,000—then told Pat that she was leaving the State of O’Quinn to move to a different country, Cougar, to take care of her aging parents.

Pat spoke to a lawyer. The lawyer did some research and found that the banking laws in the country of Cougar make it impossible to seize anyone’s funds. That was concerning, because Dot was about to move there. So, with the lawyer’s advice, Pat did two things. **First**, Pat filed a Complaint in O’Quinn state court alleging that Dot breached their agreement and seeking \$25,000 in damages. (Pat’s theory was that the harvest was worth an extra \$50,000, and Pat was entitled to half of that. You may assume that this theory of breach of contract and damages is reasonable under O’Quinn state law.)

Second, Pat sought to attach Dot’s property using a prejudgment attachment procedure. Specifically, O’Quinn state law provides: “Property may be attached without a prior hearing if

the plaintiff in a civil action files an affidavit stating that they believe the defendant might attempt to move assets to make those assets unavailable to pay damages. The court shall accept all statements in such an affidavit as true. Within one month after attachment, the court must hold a hearing, where both parties may present evidence.” Following that procedure, Pat filed an affidavit with the O’Quinn state court stating that she believed that Dot might attempt to hide assets to make them unavailable to pay damages, and the Court, without holding a prior hearing, attached \$25,000 in Dot’s bank account.

Question A: Dot’s lawyer would like to challenge the attachment of Dot’s property without a prior hearing as a violation of Due Process. Dot’s lawyer asks you to draft a short memo assessing whether Dot can successfully challenge the State of O’Quinn’s prejudgment attachment procedure.

Dot also filed a motion to dismiss Pat’s Complaint for failure to state a claim on which relief can be granted. Notably, the O’Quinn state courts have adopted the exact same standard as the federal courts for failure to state a claim on which relief can be granted. The relevant portion of Pat’s Complaint alleges the following:

1. In 2013, Plaintiff Pat and Defendant Dot entered into a contract.
2. In 2024, in violation of the terms of their agreement, Defendant Dot refused to work in business together with Plaintiff Pat.
3. As a result of this breach of contract, Plaintiff Pat requests damages of not less than \$25,000.

Question B: You are a law clerk working for the judge who is deciding Dot’s motion to dismiss. Write a short memo advising the judge whether to dismiss Pat’s Complaint for failure to state a claim on which relief can be granted. (Reminder, the O’Quinn state court will apply the same standard for this motion to dismiss that a federal court would.)

Now assume that the trial judge—whether rightly or wrongly—dismissed the Complaint (this should not affect your answer to Question B). But the judge granted Pat leave to amend the Complaint—i.e., to revise it and refile with the court.

Question C: You work with Pat’s lawyer. Pat’s lawyer asks you to suggest revisions for paragraphs 1. and 2. of the Complaint (a different attorney will check if there are any revisions worth making to paragraph 3.). What is your recommended text for paragraphs 1. and 2.?